

## Divya Bharti v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 April 2022 · Writ-C No. 10569 of 2022 · **Writ disposed; petitioner left to furnish Clause 4.4 documents, whereafter the Corporation shall process the application in accordance with law. No error in refusing connection without a court order in pending ownership litigation.**

### HEADNOTE

Where ownership of the premises is in litigation, Clause 4.4 of the U.P. Electricity Supply Code, 2005 requires the applicant to enclose a copy of the court order. A pending title suit without such an order does not make the licensee's refusal of connection erroneous. The writ was disposed of with liberty to furnish Clause 4.4 documents, whereafter the licensee shall process the application in accordance with law.

### FACTUAL SUMMARY

Divya Bharti sought a new connection for a shop. Dakshinanchal Vidyut Vitran Nigam refused because of a family dispute over the property. On a complaint to the District Magistrate, the Corporation reported that connection would be released once ownership documents and a consent letter were filed. The petitioner had pending Original Suit No. 479 of 2019 against a co-owner but had produced no court order granting a connection or declaring ownership. The writ challenged that report.

### REUSABLE CONSTRUCTIONS

1. Where ownership of the premises is in litigation, Clause 4.4 requires the applicant to enclose a copy of the court order; a pending suit without an order granting connection or declaring title does not render the licensee's refusal of connection erroneous. ¶ 1

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.4

new connection — ownership litigation — court order

#### HOLDING

Under Clause 4.4, where there is litigation regarding ownership of the premises, the person applying for connection must enclose a copy of the court order. The petitioner had instituted Original Suit No. 479 of 2019 against a co-owner but had not filed any court order granting a connection or declaring ownership. The licensee's report that connection would be released only on production of ownership documents and a consent letter therefore disclosed no error. The writ was disposed of, leaving the petitioner to submit documents required under Clause 4.4, whereafter the Corporation shall process the application in accordance with law. ¶ 1

### PRINCIPLE TAGS

**direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents** Writ disposed of with liberty to submit documents required under Clause 4.4; the Corporation shall then process the application in accordance with law. In ownership litigation, Clause 4.4 requires enclosing a court order, which had not been filed, so the current refusal disclosed no error. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — ENTITLEMENT TO CONNECTION ON THE MERITS ONCE CLAUSE 4.4 DOCUMENTS ARE PRODUCED

Left to the Corporation to process in accordance with law. ¶ 1

#### NOT DECIDED — TITLE IN ORIGINAL SUIT NO. 479 OF 2019

Not adjudicated; the Court required a court order under Clause 4.4 rather than deciding ownership. ¶ 1

*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*